UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF OHIO
EASTERN DIVISION

JANE DOE,
c/o Jeckering & Associates, LLC
10 N. High St., Suite 301
Columbus, OH 43215,

Plaintiff,

v.

CITY OF COLUMBUS,
c/o Columbus City Attorney's Office
77 North Front Street
Columbus, OH 43215,
and
FRANKLIN COUNTY, OHIO,
c/o Franklin County Prosecuting Attorney
373 South High Street, 14th Floor
Columbus, OH 43215,
and
ANTHONY SHINAUL,
1391 Kenwick Rd.
Columbus, OH 43209,
and
JOHN DOE #1 (CPD detective—report author),
and JOHN DOE #2 (CPD detective—testifying officer), in their individual capacities,
and
JOHN/JANE DOES #3–7 (FCPO personnel responsible for public disclosure of Plaintiff's identifying information), in their individual capacities,
and
JOHN/JANE DOES #8–12, in their individual capacities,

Defendants.

Case No. 2:26-cv-684

Judge:

COMPLAINT

JURY DEMAND ENDORSED HEREIN

PARTIES

1. Plaintiff Jane Doe is an adult resident of Fairfield County, Ohio.

2. Plaintiff proceeds under pseudonym to protect her safety and privacy as a sexual-assault survivor.

3. Plaintiff has moved separately for leave to proceed under pseudonym.

9. The claims against the County concern its administrative handling and public release of victim-identifying information, not any prosecutorial charging decision.

4. Defendant City of Columbus is an Ohio municipal corporation.

5. The City is responsible for the policies, practices, training, supervision, and discipline of the Columbus Division of Police.

10. Defendant Anthony Shinaul is an adult resident of Ohio.

6. Defendant Franklin County, Ohio, is a political subdivision of the State of Ohio.

11. Shinaul committed aggravated burglary, kidnapping, and rape against Plaintiff in July 1994.

7. The County maintains the Franklin County Prosecuting Attorney's Office.

12. Shinaul was identified decades later through DNA evidence.

8. Defendant Anthony Shinaul is an adult resident of Ohio.

13. Defendant John Doe #1 is the CPD detective who authored or caused to be entered into the 1994 investigative file the false statement that Plaintiff had "drinks with 'Tony' the night before she was assaulted."

9. Defendant John Doe #1 is the CPD detective who authored or caused to be entered into the 1994 investigative file the false statement that Plaintiff had "drinks with 'Tony' the night before she was assaulted." John Doe #1 is sued in his individual capacity.

14. John Doe #1 is sued in his individual capacity.

10. Defendant John Doe #2 is the CPD detective who later adopted and perpetuated that false statement as a record fact in the investigative file and case record. John Doe #2 is sued in his individual capacity.

15. Defendant John Doe #2 is the CPD detective who later adopted and perpetuated that false statement as a record fact in the investigative file and case record.

11. The true identities of John Does #1 and #2 are presently known only to Defendants and are not reasonably ascertainable by Plaintiff without discovery. Plaintiff will substitute their true names upon discovery.

16. John Doe #2 is sued in his individual capacity.

17. The true identities of John Does #1 and #2 are presently known only to Defendants and are not reasonably ascertainable by Plaintiff without discovery.

12. Defendants John/Jane Does #3–7 are presently unidentified FCPO employees, agents, or contractors who caused Plaintiff's identifying information to be publicly disclosed. John/Jane Does #3–7 acted in an administrative and ministerial capacity and are sued in their individual capacities.

18. Plaintiff will substitute their true names upon discovery.

19. Defendants John/Jane Does #3–7 are presently unidentified FCPO employees, agents, or contractors who caused Plaintiff's identifying information to be publicly disclosed.

13. Plaintiff has exercised diligence to identify John/Jane Does #3–7 and will substitute their true names upon discovery.

20. John/Jane Does #3–7 acted in an administrative and ministerial capacity.

14. Defendants John/Jane Does #8–12 are presently unidentified City or County employees, agents, or policymakers who participated in, directed, or ratified the conduct alleged herein,

21. John/Jane Does #3–7 are sued in their individual capacities.

22. Plaintiff has exercised diligence to identify John/Jane Does #3–7 and will substitute their true names upon discovery.

JURISDICTION AND VENUE

23. Defendants John/Jane Does #8–12 are presently unidentified City or County employees, agents, or policymakers who participated in, directed, or ratified the conduct alleged herein.

15. This Court has federal-question jurisdiction under 28 U.S.C. § 1331 over Plaintiff's claims under 42 U.S.C. § 1983 and the Fourteenth Amendment.

24. John/Jane Does #8–12 are sued in their individual capacities.

16. This Court has supplemental jurisdiction under 28 U.S.C. § 1367(a) over Plaintiff's related Ohio-law claims.

17. Plaintiff's Ohio-law claims arise from the same case or controversy as her federal claims.

18. Venue is proper under 28 U.S.C. § 1391(b).

19. A substantial part of the events or omissions giving rise to the claims occurred in this District.

20. One or more Defendants reside in this District.

FACTUAL ALLEGATIONS

[Filed ¶¶ 31 to 64 (the factual narrative of the 1994 offence and the investigative file) are not transcribed. See exemplars/SOURCE.md.]

21. The 1994 investigative file is a compilation of reports, notes, and evidence.

22. Plaintiff never told any officer that she had drinks with her attacker.

COUNT I

42 U.S.C. § 1983 — Equal Protection, Fourteenth Amendment

(Sex Discrimination in the Provision of Police Protection)

(Against John Doe #1, John Doe #2, the City, and the County)

23. Plaintiff realleges each preceding paragraph as if fully rewritten herein.

24. At all relevant times, John Doe #1 acted under color of state law.

25. At all relevant times, John Doe #2 acted under color of state law.

26. At all relevant times, the policymaking officials of the City and the County acted under color of state law.

27. Section 1983 affords Plaintiff a cause of action against any person who, acting under color of state law, deprived her of a right secured by the Constitution and laws of the United States.

28. The Equal Protection Clause of the Fourteenth Amendment to the United States Constitution secured to Plaintiff the right not to be denied the equal protection of the laws on account of her sex, including the right not to be afforded materially less police investigation and protection than

109. Plaintiff's claims in Counts I and II accrued no earlier than September 29, 2023.

110. Plaintiff realleges each preceding paragraph as if fully rewritten herein.

111. At all relevant times, John Doe #1 acted under color of state law.

112. At all relevant times, John Doe #2 acted under color of state law.

113. At all relevant times, the policymaking officials of the City and the County acted under color of state law.

114. Section 1983 affords Plaintiff a cause of action against any person who, acting under color of state law, deprived her of a right secured by the Constitution and laws of the United States.

115. The Equal Protection Clause of the Fourteenth Amendment to the United States Constitution secured to Plaintiff the right not to be denied the equal protection of the laws on account of her sex, including the right not to be afforded materially less police investigation and protection than the City and the County afford persons similarly situated who are not women reporting a sexual assault.

116. Plaintiff is a woman.

117. Plaintiff reported to the City's police that she had been raped.

118. The City and the County investigate non-sexual crimes against the home, including burglaries, robberies, and assaults.

119. In investigating such crimes, the City's police canvass the neighborhood where the crime occurred.

120. In investigating such crimes, the City's police interview named suspects.

the City and the County afford persons similarly situated who are not women reporting a sexual
109. Plaintiff's claims in Counts I and II accrued no earlier than September 27, 2023.

assault.

COUNT I

29. Plaintiff is a woman.

42 U.S.C. § 1983 — Equal Protection, Fourteenth Amendment
(Sex Discrimination in the Provision of Police Protection)

30. Plaintiff reported to the City's police that she had been raped.

(Against John Doe #1, John Doe #2, the City, and the County)

31. The City and the County investigate non-sexual crimes against the home, including
110. Plaintiff realleges each preceding paragraph as if fully rewritten herein.

burglaries, robberies, and assaults.
111. At all relevant times, John Doe #1 acted under color of state law.

32. In investigating such crimes, the City's police canvass the neighborhood where the
112. At all relevant times, John Doe #2 acted under color of state law.

crime occurred.
113. At all relevant times, the policymaking officials of the City and the County acted under color

33. In investigating such crimes, the City's police interview named suspects.

of state law.

34. On information and belief, the City and the County afford women who report sexual
114. Section 1983 affords Plaintiff a cause of action against any person who, acting under color of

assault less investigative effort than they afford victims of other violent crimes presenting equivalent

leads.

state law, deprived her of a right secured by the Constitution and laws of the United States.

35. On information and belief, the City and the County afford women who report sexual
115. The Equal Protection Clause of the Fourteenth Amendment to the United States Constitution

assault less protection than they afford victims of other violent crimes presenting equivalent leads.

secured to Plaintiff the right not to be denied the equal protection of the laws on account of her

36. On information and belief, that disparity reflects a custom or policy of the City and the

sex, including the right not to be afforded materially less police investigation and protection than

County, manifested in a persistent and widespread practice and pattern.

the City and the County afford persons similarly situated who are not women reporting a sexual

COUNT II

assault.

Fabrication of a False Investigative Record

116. Plaintiff is a woman.

(Against John Doe #1 and John Doe #2, in their individual capacities)

117. Plaintiff reported to the City's police that she had been raped.

37. Plaintiff realleges each preceding paragraph as if fully rewritten herein.
118. The City and the County investigate non-sexual crimes against the home, including burglaries,

38. At all relevant times, John Doe #1 acted under color of state law.

robberies, and assaults.

39. At all relevant times, John Doe #2 acted under color of state law.
119. In investigating such crimes, the City's police canvass the neighborhood where the crime

40. Section 1983 affords Plaintiff a cause of action against any person who, acting under

occurred.

color of state law, deprived her of a right secured by the Constitution and laws of the United States.

120. In investigating such crimes, the City's police interview named suspects.

41. The Equal Protection Clause of the Fourteenth Amendment to the United States

Constitution secured to Plaintiff the right not to have the State manufacture a false record portraying

her because she is a woman who reported a sexual assault, as complicit in the crime committed against her, and not to be denied the equal protection of the laws on that basis.

176. As a direct and proximate result of Defendants' conduct, Plaintiff was damaged, including by the abandonment of the investigation of her rape, the recording of Plaintiff by her government as complicit in the crime committed against her, and severe emotional distress.

[Filed ¶¶ 159 to 163 (the creation of the entry and its character as an investigatory act) are not transcribed. See exemplars/SOURCE.md.]

COUNT III

42 U.S.C. § 1983 — Fourteenth Amendment Right to Informational Privacy

(Against John/Jane Does #3–7, in their individual capacities)

177. Plaintiff realleges each preceding paragraph as if fully rewritten herein.

178. At all relevant times, John/Jane Does #3–7 acted under color of state law.

179. Plaintiff's identity as the victim of a violent home-invasion rape is information of an intimate and sexual nature.

180. Plaintiff held a substantial interest in not having that information publicly disclosed.

181. John/Jane Does #3–7 publicly disclosed that information.

182. They disclosed it without Plaintiff's consent.

183. They disclosed it without any legitimate governmental purpose.

184. They disclosed it without narrow tailoring to any compelling interest.

185. At the time of the disclosure, Plaintiff's assailant remained at liberty.

186. The disclosure exposed Plaintiff to a concrete risk of being located by her assailant.

187. The risk of harm from the disclosure was obvious and foreseeable.

188. John/Jane Does #3–7 acted with deliberate indifference to that risk.

189. As a direct and proximate result of the disclosure, Plaintiff suffered renewed fear for her physical safety.

190. As a direct and proximate result of the disclosure, Plaintiff suffered stigma and a heightened risk of harassment.

191. As a direct and proximate result of the disclosure, Plaintiff suffered severe emotional distress and loss of personal security.

COUNT IV

42 U.S.C. § 1983 — Municipal Liability (Monell)

(Deprivation of Fourteenth Amendment Rights to Equal Protection and Informational Privacy)

(Against the City and the County)

50. Plaintiff realleges each preceding paragraph as if fully rewritten herein.

51. This Count concerns the administrative functions of the City and the County.

42. John Doe #1 created the false entry pursuant to and consistent with the practice and pattern of the City of treating women who report sexual assault as less credible and less deserving of police protection than other crime victims.

43. Plaintiff realleges each preceding paragraph as if fully rewritten herein.

44. At all relevant times, John/Jane Does #3–7 acted under color of state law.

45. Plaintiff's identity as the victim of a violent home-invasion rape is information of an intimate and personal nature.

46. Plaintiff held a substantial interest in not having that information publicly disclosed.

47. John/Jane Does #3–7 publicly disclosed that information.

48. They disclosed it without Plaintiff's consent.

49. They disclosed it without any legitimate governmental purpose.

52. This Count does not concern any prosecutorial charging function.

53. The City and the County are persons subject to suit under Section 1983, and each is liable where its custom or policy is the moving force behind the deprivation of a right secured by the Constitution.

54. As against the City, this Count rests on the deprivation of Plaintiff's right to the equal protection of the laws. As against the County, this Count rests on the deprivation of Plaintiff's rights to the equal protection of the laws and to informational privacy.

55. The City failed to train and supervise the personnel responsible for investigating sexual-assault cases.

56. The need for such training and supervision was obvious.

57. The City and the County were deliberately indifferent to that need.

58. As a direct and proximate result of the City's and the County's practice and pattern and their deliberate indifference, Plaintiff was damaged, including by the prolonged denial of investigation and police protection, renewed fear for her physical safety, stigma, loss of personal security, and severe emotional distress.

COUNT V

Invasion of Privacy — Public Disclosure of Private Facts

(Against John/Jane Does #3–7, in their individual capacities)

59. Plaintiff realleges each preceding paragraph as if fully rewritten herein.

60. John/Jane Does #3–7 gave publicity to Plaintiff's identity as the victim of a 1994 home-invasion rape.

61. That matter concerned Plaintiff's private life.

62. The disclosure would be highly offensive to a reasonable person of ordinary sensibilities.

63. The matter was not of legitimate concern to the public.

64. As a direct and proximate result, Plaintiff suffered severe emotional distress.

200. The County maintained a custom or policy, manifested in a persistent and widespread practice and pattern, of failing to safeguard sexual-assault victims' identifying information against public release.

201. The City failed to train and supervise the personnel responsible for investigating sexual-assault cases.

202. The County failed to train and supervise the personnel responsible for handling victim-identifying information.

203. The need for such training and supervision was obvious.

204. The City and the County were deliberately indifferent to that need.

205. The City's and the County's policymakers continued to adhere to an approach to sexual-assault investigation and victim-information handling that they knew or should have known had failed to prevent constitutional violations.

206. A final policymaker for the County learned of the public disclosure of Plaintiff's identity.

207. That policymaker failed to take any corrective or disciplinary action regarding the disclosure.

208. That failure ratified the disclosure.

210. This practice and pattern, together with the failures to train and supervise alleged herein, was so persistent and widespread as to constitute the custom and policy of the City and the County, and was the moving force behind the deprivation of Plaintiff's rights under the Equal Protection Clause of the Fourteenth Amendment and to informational privacy alleged in Counts I and III.

211. As a direct and proximate result of the City's and the County's practice and pattern and their deliberate indifference, Plaintiff was damaged, including by the prolonged denial of investigation and police protection, the public exposure of her identity as the victim of a violent rape while her assailant remained at liberty, renewed fear for her physical safety, stigma, loss of personal security, and severe emotional distress.

241. Shinaul broke into Plaintiff's home.

242. Shinaul raped Plaintiff in the presence of her infant child.

243. That conduct was extreme and outrageous.

244. That conduct exceeds all bounds of decency tolerated in a civilized community.

245. Shinaul intended to cause, or acted in reckless disregard of the probability of causing, severe emotional distress.

246. As a direct and proximate result, Plaintiff has suffered and continues to suffer severe emotional distress.

247. Plaintiff could not, in the exercise of reasonable diligence, have discovered Shinaul's identity until approximately June 2024.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that the Court enter judgment in her favor and against Defendants and award:

A. Compensatory damages in an amount to be determined at trial;

B. Punitive damages where authorized by law;

C. Attorney's fees and costs under 42 U.S.C. § 1988 and other applicable law;

D. Pre- and post-judgment interest; and

E. Such other and further relief as the Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury on all issues so triable.

Respectfully submitted,

/s/ Bradley N. Jeckering
Bradley N. Jeckering (0092299)
Kristie A. Campbell (0075855)
Patrick M. Quinn (0081692)
Taylor V. Fairbanks (0104817)
JECKERING & ASSOCIATES, LLC

COUNT VII

Civil Action for a Criminal Act – R.C. 2307.60

(Against Anthony Shinaul)

65. Plaintiff realleges each preceding paragraph as if fully rewritten herein.

66. Shinaul committed rape against Plaintiff in violation of R.C. 2907.02.

67. Plaintiff was directly and proximately injured by those criminal acts.

68. Plaintiff could not, in the exercise of reasonable diligence, have discovered Shinaul's identity until approximately June 2024.

69. Plaintiff's claim against Shinaul did not accrue until that date.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that the Court enter judgment in her favor and against Defendants and award:

A. Compensatory damages in an amount to be determined at trial;

B. Punitive damages where authorized by law;

C. Attorney's fees and costs under 42 U.S.C. § 1988 and other applicable law;

D. Pre- and post-judgment interest; and

E. Such other and further relief as the Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury on all issues so triable.

Dated: June 5, 2026

Respectfully submitted,

/s/ Bradley N. Jeckering
Bradley N. Jeckering (0092299)
Kristie A. Campbell (0075855)
Patrick M. Quinn (0081692)
Taylor V. Fairbanks (0104817)
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